Youth who Cross Over from the Child Welfare to the Juvenile Justice System: Perspectives from the Field & New Directions

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Child Welfare, Juvenile Justice Professionals & Racial Disproportionalities

Background

- Compared to the general population, youth involved with the child welfare system (CWS) are at a 45% to 72% higher risk for being arrested, or "crossing over" into the juvenile justice system (JJS) (Ryan & Testa, 2005; Widom, 1989).
- Black youth are twice as likely as White youth to cross over from the CWS to the JJS (Ryan & Testa, 2005).
- Even when controlling for income, neighborhood, parental education, type of maltreatment and juvenile offence, race of youth still matters (Needell, Brookhart, & Lee, 2003; Ryan, Herz, Hernandez, & Marshall, 2007).

Methods

Illinois Data: Crossing Over and Disproportionalities

- 33 experienced child welfare, law enforcement, and court professionals from Illinois described their **perspectives** on racial disproportionalities among crossover youth.
- Semi-structured, individual, audio-recorded interviews.

"From your professional experience, what are the reasons Black children from CWS are more at risk for crossing over into the JJS than white children from CWS?"

Table 1. Sample

	Total (%)	Black (%)	White (%)
Total	33 (100)	13 (39)	20 (61)
Child welfare	12 (36)	6 (50)	6 (50)
Law enforcement	13 (39)	5 (38)	8 (62)
Court	8 (24)	2 (25)	6 (75)
		Mean	SD
Yrs work experience		16.38 yrs	8.20

Results

How did professionals explain racial disproportionalities in crossing over?

Professionals described two primary reasons why Black children involved in child welfare are more likely than white children from the CWS to cross over into the JJS.

Distrust of authorities
- Communication breakdown
- Escalation of tension between authorities and African-American families at scene of inciden

Institutional racism
- Child welfare system
- Law enforcement
- Courts

Do perspectives of contributors to disproportionalities differ by race and profession?

YES.

- More black than white professionals attributed disproportionalities among crossover youth to system level factors (e.g., institutional racism).
- Compared to child welfare professionals, more court professionals attributed disproportionalities to differences between black and white families (e.g., parenting).

Table 2. Average number of factors reported by professionals associated with child, parent/family, and/or system for the total sample, race and type of professional

	Total Sample	Race		Profession		
		Black	White	Child Welfare	Law Enforcement	Court
Child	0.79	0.62	0.90	0.67	0.77	1.00
Parent/family	2.12	1.69	2.40	1.17**	2.15	3.50
System	4.06	5.69	3.00**	4.76	3.46	4.00

**p≤.01

Distrust of Authorities & Communication Breakdown

… I have … seen in police reports people saying, 'This is how I am,' or 'This is my culture'… Is that a part of your culture that you really want to perpetuate? Running from police? Lying about your name? Yelling and… causing more drama? Is that really a cultural thing that the rest of us are supposed to step back and respect, or is that an excuse for poor behavior?... [U]ltimately they're [asked], 'Why did you run?' [And they say,] 'Well, I don't trust the police'… [T]hey did commit a crime by running and lying, so they've escalated the situation… [T]he offender is resisting a police officer or obstructing…,by running and by lying and by escalating, or worse, fighting when you get caught.
-White, Court



[B]ecause [African Americans] are less trustful of this power structure, they are more willing to… act against its rules…And the power structure defines those as crimes… They don't feel a part of that system, and so why should they go by its rules?... I think the distrust has built up over generations…I think it is perception that psychologically prepares them to be less law-abiding… and everything that goes into their self-perception as a black person and their perception of a non-black controlled society. Indeed, a society that they seem to perceive marginalizes them.
-White, Court

[T]hey'll tell you, 'If you was white,' as far as a home visit, 'I wouldn't even open my door.' But seeing that I'm black, they just welcome me right in… I get phone calls from mothers asking if they can talk to me, because they can't trust anyone… So it's like, they don't even have that outlet to help themselves…. [Y]ou see it a lot.
-Black, Law Enforcement

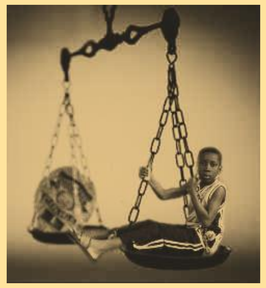
They're very guarded when they have to deal with assistance and there's reasons for that…[T]hat's going all the way back to the discrimination that we've had in this country… [W]hether they committed the crime, or [not], the hangings, all the lynchings… [T]he systems didn't treat them fairly, so they're guarded for various reasons. And that still applies to this day.
-Black, Child Welfare

Institutional Racism

[I]f you're ganna call me a [bitch] or [a mother fucker]… How can me as a human say, "You're so nice! You're doing a great job parenting!" You never write it up as such. When I first started I had an African-American case of a young mom, 17, who had been a ward [herself] and didn't like her caseworker… [W]e were trying to determine if she was a fit parent and she was calling her caseworker racially biased names, like cracker and all that stuff. That information went into the court report. Well yeah, that is disrespecting and thumbing your nose at authority… but what is the purpose of putting that in a court report except to outline this as an angry, evil person? Because of how I was raised, I'm not going to talk about a person of authority to their face... But this girl, who was raised in the system,… didn't learn that same social grace that somebody was using to judge her… What difference does it make that she thinks you're a cracker in regards to her parenting?... [T]hat has nothing to do with how she's raising her daughter… Does that impact how she's running the house?... When caseloads are high, you don't take the time to have thought because you're writing and you're covering things… There's so much stuff that's deeper than what we see on the surface.
-White, Child Welfare

[B]ecause of the disparity, they use that to reinforce [that crime happens more among African-American communities]. I've heard people that I work with [say], 'Why do we lock up more black kids? Well, because more black kids get brought in'… [A]nd it's always like, 'Well, we can't do anything about it because we arrest the people we get calls about. It's not our fault! Our hands are clean'… It's like every step along the way, people have an out to say, 'We don't have to look at what we're doing. We don't have to modify the way… we make decisions. We don't have to have any uncomfortable conversations about personal biases that we're bringing to it'… [T]he blatant racism is easy to get. It's the insidious, unconscious, don't know you're doing it that's a lot harder to correct.
-White, law enforcement

[[I]f you have a young man that [is] targeted and [has] been arrested unjustly, they're not going to be serious about any services that they have to do, because they feel they're doing them just because…the police are trying to keep them down.
-Black, Child Welfare



Discussion

Professionals attributed racial disproportionalities of children's crossing over from the CWS to the JJS primarily to system-level factors, specifically, to institutional racism. They also stressed historically-rooted distrust of authorities by low income African-American children and families. Professionals' responses varied somewhat by race , with blacks more likely than whites to elaborate on system level influences; and by profession, with court professionals more likely than child welfare professionals to focus on family-level influences.

Results from this Illinois study raise issues for supporting relationships between youth, families, and authorities. Through training initiatives on culturally responsive practices, enhanced community outreach by professionals, and dialogue among professionals from different disciplines, relationships between authorities and families of color may be enhanced. Once these relationships are strengthened, racial disproportionalities among crossover youth may diminish.

Crossover Youth Practice Model

How is Minnesota Addressing Racial Disproportionalities Among Crossover Youth?

The Crossover Youth Practice Model (CYPM), a Georgetown University and Casey Family Programs initiative, is in the first year of implementation in five Minnesota counties. CYPM attempts to reduce the rate of youths' crossing over and entrenchment in JJS. The Model's key components include enhancing:

- Interagency collaboration
  - Data sharing
  - Case planning
  - Court involvement
- Youth and family engagement
- Early identification of youth at risk for crossing over

The model also aims to reduce racial disproportionalities by targeting professionals' practice in the following areas:

- Attention to client's cultural backgrounds and needs
- Understanding and addressing biases that may be impacting the delivery of services
- Ensuring that families' culture and values are addressed.

Our research group is currently involved in a mixed-method evaluation of the CYPM. This evaluation includes qualitative interviews with team leaders and key stakeholders from each of the five counties, as well as worker, youth and family interviews. Additionally, data are being requested that would allow us to examine youth outcomes over time. Through both qualitative interviews and quantitative analyses we hope to gain insight into the prevalence of disproportionalities and the role that race and ethnicity play in the lives of crossover youth in Minnesota.

Early qualitative findings based on interviews with key stakeholders indicate that child welfare and juvenile justice systems are significantly changing the structure of service delivery in Minnesota. Upcoming youth and family interviews should reveal more.

When the risk for arrest by youth involved in the child welfare system is reduced, will we also see a reduction in the rate of racial disproportionalities among crossover youth?